

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 30, 2026
8:30 AM/1:30 PM

19. TIFFANY SCHNEIDER V. NATHAN SCHNEIDER

PFL20210326

Respondent filed a Request for Order (RFO) on February 20, 2026, seeking modification of child custody orders. Upon review of the court file, there is no Proof of Service showing Petitioner or the Department of Child Support Services was properly served.

The court drops the matter from calendar due to the lack of proper service.

TENTATIVE RULING #19: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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20. MONICA SMITHCAMP V. GAVIN SMITHCAMP

PFL20180819

Respondent filed a Request for Order (RFO) seeking a modification of child support or March 6, 2026. Respondent concurrently filed an Income and Expense Declaration. Proof of Service shows Petitioner was mail served on March 16, 2026. The court notes this is a post-judgement request for modification. As such, Family Code section 215 applies, requiring either personal service or address verification. Respondent has not complied with the requirements of Family Code section 215.

Petitioner filed a Responsive Declaration on April 16, 2026. Respondent included her Income and Expense Declaration as an attachment to the Responsive Declaration. Both were mail served on April 17, 2026. Petitioner does not raise the issue of the defect in service in her Responsive Declaration, therefore, the court finds the issue to be waived.

Respondent seeks an order reducing child support to \$0 as Petitioner is now earning a higher income. Petitioner requests the court order guideline child support based on the parties' incomes. Petitioner also requests the court order the production of paystubs for Respondent from March 18, 2021 to present.

The court has read and considered the filings as outlined above. The court denies Petitioner's request to order Respondent to produce paystubs from March 2021 to present. The court finds this request exceeds the scope of the requested modification and discovery as to that time frame has closed.

The court finds guideline child support to be \$603 per month payable from Petitioner to Respondent (see attached X-Spouse). The court orders Petitioner to pay Respondent \$603 as and for child support effective May 1, 2026, with future payments due on the first of each month, until further order of the court or termination by operation of law.

The court further finds that Respondent does routinely have the ability to earn overtime. The court orders Respondent to prepare an overtime table. Respondent is to provide Petitioner paystubs on a quarterly basis and to true up any overpayment based on gross monthly income earned over \$9,618.

In addition to the foregoing monthly support payments, the parties are ordered to equally share in any uninsured medical care costs for the children, childcare costs when such costs are incurred as a result of employment or necessary education for employment,